

A.D.Bulloch Assessors**Consulting Automobile Engineers, Assessors and Valuers**

Directors:- A.D.Bulloch A.Inst.A.E.A., AMIMI, MFIEA, AQP

R.Bulloch.

email: andrew@northeastassessors.co.uk

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AMBER Vehicle Assessors Ltd
 Komorebi
 34 Keswick Avenue
 Wirral
 CH63 0NP

Date: 13/01/2023
 Our Ref: 00040559/ADB
 Your Ref: 15347

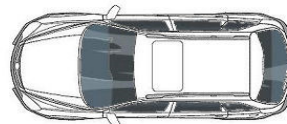
ENGINEERS REPORT

Dear Sirs,

Client/Insured: **Mr David Smith**

We refer to your instructions received on **12 January 2023** and we confirm that we have attended at **Mr David Smith, The Beeches, Whickham Park, Newcastle, Tyne & Wear, NE16 4EH** on **13 January 2023** and we are pleased to report our findings as follows;

Vehicle: PORSCHE PANAMERA TURBO S-A	Colour: GREY	Speedo: 22875	Miles
Reg No: R999JAY	Registered: Apr 2017	Type: 5 Door Hatchback	Trans: Automatic
Vin No: WP0ZZZ97ZHL152636	MOT Exp:	R/H/F Tyre 6	R/H/R Tyre 6
Mods: None	Cond: Good	R/H/F Belt Fitted	R/H/R Belt Fitted
Audio: Standard Fit	Man'f'd: 2017		Spare Tyre
Brakes: Satisfactory (static Check)	Taxed: May 2023		nk
Steering: sat	Fuel: Petrol		Centre Belt
Extras: None	C.C.: 3996		Fitted
Air Bags Deployed: Not Deployed	BHP: 542.	L/H/F Belt Fitted	L/H/R Belt Fitted
Damage:	Incident: 15/10/2021	L/H/F Tyre 6	L/H/R Tyre 6

**ASSESSED COSTINGS**

Item	Estimated	Agreed	Saving
Specialist charges	£0.00	£0.00	
Paint and Materials	£0.00	£0.00	
Parts	£0.00	£0.00	
Labour	£0.00	£0.00	
Total excluding VAT	£0.00	£0.00	
VAT element		£0.00	
Total including VAT		£0.00	

VALUATION

	Retail	Trade	Mid Book	Miles(000)	Guide Date
Engineer Values	£88,920.00	£86,680.00	£87,800.00	22875	Oct 2021
Mileage Adj By +/-		Other Adj By +/-		Condition Adj By +/-	
Pre-Accident Condition:	Good			Engineer's Value	£89,000.00

We understand that the above vehicle was involved in a road traffic incident 15/10/2021 in which it suffered damage to the underside of the vehicle. We have studied the repairer's estimate, submitted by UK Assistance Stockton On Tees, and note that the vehicle had suffered damage to the o/a/f and n/s/f of the vehicle. The front panel being an integral part of the vehicles structure..

INSPECTION

We can confirm that the repair has been successfully carried out to a commercially acceptable standard.

We carefully inspected the whole vehicle and noted that it was in Good condition throughout. We could see no evidence whatsoever of previous accidental damage, apart from the repaired areas under notice.

To the trained eye, it is evident that this vehicle has been repaired, albeit, to a good and professional standard.

VALUATION

The Oct 2021 edition of Glass's Guide quote a retail value of £88,920.00 and a trade value of £86,680.00 for a registered model at 22875 miles. Adjusting for this vehicles low mileage gives a retail value of £89,000.00.

DIMINUTION IN VALUE

Under law and the 1967 Misrepresentation Act, the vendor, if asked, must disclose to a prospective purchaser, that the car he is proposing to sell has been involved in an accident and subsequently been repaired.

The principal behind Diminution in Value is that if two identical vehicles were offered for sale, one of which had previously been involved in an impact and subsequently been repaired, then a reasonable purchaser would choose the unrepaired vehicle or expect a discount on the repaired vehicle to encourage them to choose that one.

When considering whether Diminution in Value does or does not occur and if it does occur, quantifying the same, then a number of factors must be considered.

Included in these factors are the following points: -

The age of the vehicle: - The newer the vehicle, the more likely Diminution in Value will occur.

The mileage of the vehicle: - Vehicles that have covered more than an average mileage for their age, generally suffer less from Diminution in Value than one with a below average mileage.

The severity of the impact: - As a general rule a vehicle that has only suffered slight cosmetic damage will not suffer any great Diminution in Value as a result of the repairs carried out. However, if the vehicle's structure has been distorted, or if any welding in structural body panels have been replaced, then Diminution in Value is more likely to occur.

Make/Model of the vehicle: - Vehicles of a prestige marque or of a higher specification are more likely to suffer Diminution in Value than lower specification models. The very nature of higher specification models makes them more expensive and the prospective purchaser generally has a higher disposable income and cannot be easily swayed by a small discount to persuade them to buy a vehicle with an accident damage repair history.

CONSIDERATIONS OF DIMINUTION IN VALUE APPLIED TO THE PARTICULAR VEHICLE UNDER NOTICE

This particular vehicle under notice was at the time of the accident, and it had only covered a (at the time of our inspection on the recorded mileage was). The vehicle had suffered an impact that resulted in it having .

The vehicle is of a prestige marque and a particularly high specification.

After considering the above, it is my opinion that an element of Diminution in Value has occurred in this particular case and this should be calculated with the pre-accident value at the time of the accident. I refer to *Brightmore versus Eaton*, Chester County Court, 3 October 1986, *Smith versus Linser*, Chichester County Court, 14 August 2001 and other such cases.

In general, the rate of diminution in value falls between 5% and 25% of the retail value of the vehicle at the time of the accident

Taking into consideration all aspects, specifically, the make / model, age, mileage and the extent of the damage, I have assessed the Diminution in Value to be **10%** of the pre-accident market value.

SUMMATION

After considering all the relevant facts in this case, we are of the opinion that Diminution in Value has occurred and the quantum of Diminution can be accurately calculated at **£8900.**

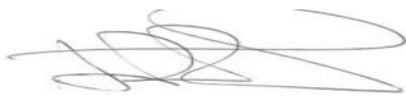
We therefore recommend that your Client seeks compensation for Diminution in Value at the quantum amount of **£8900.**

“I confirm that I have made clear which facts and matters in this report are within my own knowledge and which are not. Those that are within my own knowledge I confirm to be true. The opinions I have expressed represent my true and complete professional opinions on matters to which they refer.

I understand my duty to the Court and I am aware of the requirements of Part 35, PD35, this protocol and the PD on pre-action conduct.”

We trust that the above is of assistance and take this opportunity of enclosing a note of our fee for your kind attention in due course.

For & on behalf of



Andrew Bulloch A.Inst.A.E.A., AMIMI, MFIEA,AQP
NorthEast Assessors Ltd